

*Code of Civil Procedure [sic] § 3294* and *Hassoldt v. Patrick Media Group, Inc.* (2000) 84 Cal.App.4th 153"), and (c) paragraph 5 of the Prayer of the Complaint ("For the Causes of Action for Intentional Infliction of Emotional Distress and Private Nuisance, punitive damages pursuant to *California Code of Civil Procedure [sic] § 3294*"). Those provisions of the Complaint shall be deemed properly asserted only against defendant Shontell Williams. The Court will **GRANT** Plaintiff **LEAVE TO AMEND** to attempt to allege facts to state a claim for punitive damages against the Company under Civil Code section 3294(b). The Court **DENIES** the motion to strike by defendant Shontell Williams as to those portions of the Complaint.

The Court **DENIES** the motion to strike by both defendants John Stewart Company and Shontell Williams directed to paragraph 53 and paragraph 6 of the Prayer of the Complaint.

**11. 9:00 AM CASE NUMBER: C26-00564**

**CASE NAME: CATERPILLAR FINANCIAL SERVICES CORPORATION, VS. CHRIS CHRYSSIKOS  
HEARING IN RE: APPLICATION FOR WRIT OF POSSESSION AFTER HEARING RE: CHRIS ROY  
CHRYSSIKOS**

**FILED BY: CATERPILLAR FINANCIAL SERVICES CORPORATION,**

**\*TENTATIVE RULING:\***

The unopposed Application for Writ of Possession is **GRANTED**. Moving party to appear in connection with review and entry of order(s).

**12. 9:00 AM CASE NUMBER: L25-02197**

**CASE NAME: ONEMAIN FINANCIAL, LLC ONEMAIN FINANCIAL GROUP, LLC VS. HEISELL CENTENO  
MURILLO**

**HEARING IN RE: MOTION TO PAY IN INSTALLMENTS**

**FILED BY:**

**\*TENTATIVE RULING:\***

Defendant and judgment debtor Heisell Centeno Murillo ("Judgment Debtor") filed a motion to pay judgment in installments on May 4, 2026 (the "Motion to Pay Installments"). The Motion to Pay Installments was set for hearing on August 3, 2026. The motion is opposed.

#### Background

A default judgment was entered against Judgment Debtor on October 16, 2025, awarding \$10,981.92 (the "Judgment Amount") to plaintiff and judgment creditor OneMain Financial Group, LLC ("Judgment Creditor"). See Judgment filed October 16, 2025. On May 4, 2026, Judgment Debtor filed the Motion to Pay Installments, seeking to pay the Judgment Amount in \$250 monthly installments, payable on the 10th of each month. See Declaration as part of Motion to Pay Installments ("Murillo Declaration"), ¶13. No proof of service is attached to the Motion to Pay Installments or filed separately.

Judgment Creditor filed an opposition on July 21, 2026 (the "Opposition"). Judgment Creditor acknowledges receiving a copy of the Motion to Pay Installments on May 20, 2026. Opposition, p. 1.

#### Analysis